

CHAPTER 39.

An Act to enable further assistance to be given to rural housing authorities in regard to the provision of houses in agricultural parishes in England and in rural areas in Scotland for agricultural workers and for persons whose economic condition is substantially the same as that of such workers, and in connection therewith to amend the provisions of section three of the Housing (Financial Provisions) Act, 1924, with respect to the rents of such houses.

[31st July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Minister of Health (in this Act referred to as “the Minister”) may, subject to the provisions of this Act and on the recommendation of a committee (hereinafter referred to as “the Committee”) appointed by him with the approval of the Treasury for the purposes of this Act, undertake to make special contributions, on such conditions as he may with the like approval determine, towards the expenses to be incurred by such rural district councils as are hereinafter mentioned in providing houses in the agricultural parishes of their districts for agricultural workers and persons of substantially the same economic condition, that is to say, persons whose incomes are, in the opinion of the council concerned, such that they would not ordinarily pay rents in excess of those paid by agricultural workers in the council's district.

Special
Govern-
ment con-
tributions
to housing
expenses of
certain rural
district
councils.

(2) If any member of the Committee becomes, in the opinion of the Minister, unfit for any reason to continue to be a member of the Committee, the Minister may terminate his appointment.

(3) Contributions may be made under this section to such rural district councils only as—

- (a) before the thirtieth day of November, nineteen hundred and thirty-one, make application to the Committee for the purpose; and
- (b) satisfy the Committee that their financial resources are insufficient to enable them without assistance under this section to make adequate provision in the agricultural parishes of their districts for meeting the need for houses for such persons as are mentioned in subsection (1) of this section.

(4) In considering applications so made to them, the Committee shall be guided by any general directions which may be given to them by the Minister, with the approval of the Treasury, for the purposes of this section.

(5) The Minister shall cause any conditions laid down by him under subsection (1) of this section, and any directions given by him under the last preceding subsection, to be laid forthwith before the Commons House of Parliament, and, if that House within the next twenty-one days on which the House has sat after any such conditions or directions are laid before it, resolves that they shall be annulled, they shall cease to have effect but without prejudice to the validity of anything previously done thereunder, or to the laying down or giving of fresh conditions or directions.

(6) A contribution under this section shall be such sum payable annually for a period of forty years in respect of each house as the Minister, on the recommendation of the Committee, may determine to be appropriate to the circumstances of the particular council and shall be in addition to, and not in substitution for, any contributions payable by the Minister under the Housing (Financial Provisions) Act, 1924, or by a county council under section thirty-four of the Housing Act, 1930.

14 & 15
Geo. 5. c. 35.
20 & 21
Geo. 5. c. 39.

(7) The rents to be charged by a council for the houses in respect of which contributions are being made under this section shall not exceed such sums as may be determined by the Minister in accordance with recommendations of the Committee, and in relation to any

such house the Housing (Financial Provisions) Act, 1924, shall have effect as if compliance with the requirement imposed by this subsection were compliance with the requirements of paragraph (e) of subsection (1) of section three of that Act and, for the purposes of any calculation of rents of other houses to be made under the said paragraph, any such house shall be disregarded.

2. With a view to assisting rural district councils in the preparation and carrying out of schemes for the provision of dwelling accommodation in the agricultural parishes of their districts to meet the needs of such persons as are mentioned in subsection (1) of the preceding section, the Minister, if he is requested by any such council so to do and is satisfied that their financial resources are insufficient, and that the council of the county is unwilling to give assistance to them under subsection (1) of section thirty-three of the Housing Act, 1930, may with the consent of the Treasury acquire land and erect houses on behalf and at the expense of that council, and for that purpose may exercise any powers which, under the enactments relating to the housing of the working classes, the council might exercise in regard to the acquisition of land and the erection of houses, or may make arrangements with any other Government Department for the exercise by that Department of any of those powers which, in his opinion, could more conveniently be so exercised.

Power of Minister of Health to assist rural district councils by acquiring land and erecting houses.

3. For the purposes of this Act, the expression "agricultural parish" has the same meaning as that which, by virtue of section sixty of the Housing Act, 1930, it has for the purposes of Part III of that Act.

Meaning of "agricultural parish."

4.—(1) Sections one and two of this Act, in their application to Scotland, shall have effect subject to the following modifications:—

Application to Scotland.

- (a) References to the Minister of Health shall be construed as references to the Department of Health for Scotland (in this section referred to as "the Department"), and references to the Committee shall be construed as references to a committee appointed by the Department with the approval of the Treasury for the purposes of this Act; and

15 & 16
Geo. 5. c. 15.

- (b) References to rural district councils and to their districts shall be construed as references to county councils as local authorities under the Housing (Scotland) Act, 1925, and to their counties, and references to agricultural parishes shall be construed as references to rural areas.

20 & 21
Geo. 5. c. 40.

- (2) In this section the expression "rural area" has the same meaning as that which it has in the Housing (Financial Provisions) Act, 1924, as amended by the Housing (Scotland) Act, 1930, and any question as to whether an area is or is not a rural area shall be determined by the Department, whose decision shall be final.

Expenses of
Minister of
Health and
Department
of Health
for Scotland.

5. Any contributions which the Minister of Health and the Department of Health for Scotland may undertake to make under section one of this Act shall be defrayed out of moneys provided by Parliament, but the present capital values of those contributions as calculated at the dates on which the Minister or, as the case may be, the Department undertake to make them (interest being reckoned for the purpose at the rate of four pounds ten shillings per centum per annum) shall not in the aggregate exceed the sum of two million pounds, of which eighty ninety-first parts shall be allocated to England, and eleven ninety-first parts shall be allocated to Scotland.

Short title
and extent.

6.—(1) This Act may be cited as the Housing (Rural Authorities) Act, 1931.

- (2) This Act shall not extend to Northern Ireland.

CHAPTER 40.

An Act to amend the Agricultural Produce
(Grading and Marking) Act, 1928.

[31st July 1931.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present